# SEAN KIMKWON

## EDUCATION

**Columbia Law School,** New York, New York, J.D., 2023
Honors: James Kent Scholar
Harlan Fiske Stone Scholar
Parker Certificate of Achievement in International and Comparative Law
Activities: Columbia Law Blockchain Club (Co-Founder, Co-President)

**Columbia University,** New York, New York, B.A., *summa cum laude* in Economics, 2019
Honors: Phi Beta Kappa
Activities: Resident Advisor, 2016-2018
Study Abroad: Doshisha University, Kyoto, Japan, Spring 2019

## PUBLICATIONS

*The Forgotten History of the Community Reinvestment Act: Justifying Agency Implementation of the CRA in the Wake of Loper Bright*, 44 REV. BANKING & FIN. L. 55 (2024). (link)

The text of the Community Reinvestment Act ("CRA") mandates the federal banking agencies to score banks on how well banks meet the credit needs of their "entire community." Although the CRA lacks explicit reference to racial discrimination or inequality, this Article shows that the agencies have always interpreted the CRA to address racial discrimination, in tandem with the fair lending laws. Such interpretation is significant, because it incorporates the CRA, a banking law, into the anti-discrimination legal framework within the civil rights sector. However, some critics argue that the CRA has nothing to do with racial discrimination, because the CRA, unlike fair lending laws, does not explicitly prohibit racial discrimination. In response to the critics, this Article supports the CRA's role in combating racial discrimination with historical and textualist analyses. From a historical perspective, the CRA should be understood as part of congressional effort to address the issue of redlining, which had originated from the segregation era and remained closely tied to the credit shortage in minority neighborhoods after the ban on racial segregation. From a textualist perspective, the term "entire community" in the CRA allows the federal banking agencies to address racial discrimination and inequality in the credit market as they do today. This Article concludes that these arguments, as a whole, suggest that the recent overruling of *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.* in *Loper Bright Enterprises v. Raimondo* would not have material impact on the validity of the CRA enforcement, given that the arguments are based upon the traditional tools of statutory interpretation that courts would employ to interpret the CRA should its regulations be challenged.

Note, *Regulation of DeFi Lending: Agency Supervision on Decentralization*, 24 COLUM. SCI. & TECH. L. REV. 379 (2023). (link)

The rise of intermediary-less decentralized finance (“DeFi”) lending has led many to wonder how it should be regulated. Although DeFi lending could potentially offer reduced risks of centralization and market frictions, investors in DeFi lending are currently exposed to centralized risks and losses in the volatile market in the absence of regulation. The SEC suggested that the agency might regulate the sector under the federal securities laws. A truly decentralized lending project, however, does not involve any centralized entity that could carry the burden of compliance with the securities laws. This

Note shows that many DeFi lending projects are not truly decentralized and are in various stages of decentralization. Unlike P2P lenders and financial intermediaries that bear the costs of compliance, many DeFi developers seek to build automated lending systems and gradually relinquish their control over their creation. However, with the lack of regulation, the investors have no means to tell actors who seek to build secure decentralized systems from those who do not in the early stage of DeFi protocol development. To address the issue, this Note proposes a three-part framework that would oversee the process of decentralization for DeFi lending projects, drawing its structure from the U.S. banking regulation focused on supervision. First, the framework recognizes the value of decentralization in reducing market frictions and risks of centralization. Second, the framework establishes a federal agency that oversees the process of decentralization on the flexible safety and soundness standard of Glass-Steagall Act. Third, the framework grants enforcement powers to the federal agency to sanction DeFi platforms that do not comply with government regulations.

Cleary Gottlieb Steen & Hamilton LLP, *Agencies Adopt Final Guidance for Resolution Plans of Domestic and Foreign Triennial Full Filers* (Aug. 9, 2024) (republished in 20 PRATT'S J. BANKR. L. 297) (link)

Cleary Gottlieb Steen & Hamilton LLP, *FDIC Adopts New Final Rule for IDI Resolution Plans* (June 28, 2024) (link)

Cleary Gottlieb Steen & Hamilton LLP, *U.S. Adopts Reporting Rules for Non-Centrally Cleared Bilateral Repo Transactions* (June 14, 2024) (link)

## EXPERIENCE

**The Center for Law and the Economy, Columbia Law School,** New York, New York
Fellow — Oct. 2026 – Present

**The Board of Governors of the Federal Reserve System,** Washington, District of Columbia
Attorney, Banking Regulation and Policy Group — Feb. 2025 – Sep. 2026

**Cleary Gottlieb Steen & Hamilton LLP,** New York, New York
Associate, Financial Institutions Group — Oct. 2023 – Feb. 2025
Summer Associate — May 2022 – Jul. 2022

**Kim & Chang,** Seoul, South Korea
Summer Associate — May 2021 – Jul. 2021

## RESEARCH EXPERIENCE

**Columbia Law School,** New York, New York
Research Assistant for Professor Kellen R. Funk — Aug. 2021 – May 2023
Research Assistant for Professor Talia Gillis — Jan. 2023 – May 2023
Student Editor for Foundation Moot Court — Sep. 2021– May 2022
Staff Editor for Columbia Science & Technology Law Review — Sep. 2021 – May 2022

## TEACHING EXPERIENCE

**Columbia Law School,** New York, New York

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| Teaching Fellow for Foundation Moot Court (Professor S. Bernhardt) | Jan. 2023 – May 2023 |
| Teaching Fellow for Workshop in Briefcraft (Professor S. Bernhardt) | Sep. 2022 – Dec. 2022 |
| Teaching Fellow for Negotiation Workshop (Professor Fowler-Williams) | Sep. 2022 – Dec. 2022 |
| Teaching Fellow for Constitutional Law (Professor C. Ponsa-Kraus) | Jan. 2022 – May 2022 |
| Teaching Fellow for Legal Practice Workshop (Professor S. Bernhardt) | Jan. 2022 – May 2022 |

## BAR ADMISSION

New York